

#	Case Name	Tentative
49	Ware Malcomb vs. Rogerson Capital 24-01440256	Motion to Be Relieved as Counsel of Record NO TENTATIVE RULING – Parties to appear on Zoom or in-person.
51	Robinson vs. Laguna Beach House 23-01317797	Motion for Leave to File Amended Complaint Plaintiff Paul Robinson’s motion for leave to file a First Amended Complaint (“FAC”) is GRANTED. Code of Civil Procedure section 473, subdivision (a)(1), provides that “the court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding...” (Code Civ. Proc., § 473, subd. (a)(1).) Courts are bound to apply a policy of great liberality in permitting amendments to the pleadings “at any stage of the proceedings, up to and including trial” absent prejudice to the adverse party. (<i>Atkinson v. Elk Corp.</i> (2003) 109 Cal.App.4th 739, 761.) The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified: “If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend; and, where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion.” (<i>Morgan v. Superior Court</i> (1959) 172 Cal.App.2d 527.) “Generally, leave to amend should be liberally granted. However, unwarranted delay justifies denial of leave to amend. [Citations.] And the liberal policy favoring leave to amend ‘applies “ ‘only “[w]here no prejudice is shown to the adverse party.” ’ ’ ’ [Citation.] Prejudice exists where the proposed amendment would require delaying the trial, resulting in added costs of preparation and increased discovery burdens. [Citation.]” (<i>Miles v. City of Los Angeles</i> (2020) 56 Cal.App.5th 728, 739.) Defendant Laguna Beach House (“Defendant Hotel”) contends Plaintiff’s delay in seeking leave to file the proposed FAC is unwarranted. Here, Plaintiff learned of the Doe Defendants Plaintiff seeks to add in June 2025 and October 2025. (See Alexander Decl. ¶¶ 2 and 16, Exhs. B and I.) During the ensuing months, Plaintiff and Defendant Hotel engaged in settlement discussions. (<i>Id.</i> at ¶¶ 6-10.) On September 25, 2025, Plaintiff requested Defendant Hotel to stipulate to Plaintiff adding the Doe Defendants to the Complaint; Defendant Hotel failed to respond. (<i>Id.</i> at ¶ 11.) Plaintiff applied ex parte to leave to amend the Complaint on February 19, 2026 and filed the instant motion on March 11, 2026. (ROA 53.) Although Plaintiff could have requested leave to amend more promptly, Plaintiff’s delay is not unwarranted, particularly when Defendant Hotel’s lack of communication is considered. Trial is currently set for September 14, 2026. Discovery is not yet closed and appears to be in its early stages. (See Alexander Decl. ¶ 21.) The motion for leave to file an amended complaint is granted. Plaintiff is ordered to file and serve the First Amended Complaint attached as Exhibit A to the Declaration of Barret T. Alexander by June 5, 2026. Plaintiff to give notice.

52	Murray vs. Tesla, Inc. 25-01457562	Motion for Order to Stay Proceedings The Motion for Stay brought by Defendants Tesla, Inc. and Tesla Energy Operations, Inc. is GRANTED. The relevant arbitration provision states: “The laws of the state where your Home is located shall govern this PPA without giving effect to conflict of law principles.” (§4 of Klimkowski Declaration and Exhibit B thereto, at §18; See also ¶16 of Complaint and Exhibit A thereto.) The arbitration provision proceeds to indicate arbitration will be administered by JAMS, and thereafter states: “The arbitration will be governed by the Federal Arbitration Act (Title 9 of the U.S. Code).” (<i>Ibid.</i>) Given the arbitration provision references <i>both</i> the FAA and “[t]he laws of the state where your Home is located” (in this case indisputably California), the provision does not clearly communicate intent to apply the FAA “to the exclusion of California procedural law.” (<i>Cronus Investments, Inc. v. Concierge Services</i> (2005) 35 Cal.4th 376, 383.) “[W]here, as here, the parties do not ‘expressly designate that any arbitration proceeding should move forward under the FAA’s procedural provisions rather than under state procedural law’ [Citation], California procedures necessarily apply.” (<i>Los Angeles Unified School Dist. v. Safety National Casualty Corp.</i> (2017) 13 Cal.App.5th 471, 482.) Notably, the <i>broad</i> reference to “[t]he laws of the state where your Home is located” is itself included within the arbitration provision, merely two sentences before the reference to the FAA. (§4 of Klimkowski Declaration and Exhibit B thereto, at §18; See also ¶16 of Complaint and Exhibit A thereto.) The location of the above-mentioned choice-of-law provision indicates an intent for both California law and the FAA to apply to arbitration; however, the intention of the parties where, as here, the CAA and FAA directly conflict – is unclear. Regardless of the above, however, the Court exercises its inherent authority to stay this action. “[A] court ordinarily has inherent power, in its discretion, to stay proceedings when such a stay will accommodate the ends of justice.” (<i>OTO, L.L.C. v. Kho</i> (2019) 8 Cal.5th 111, 141.) While Code of Civil Procedure section 1294, subdivision (a), indicates an <i>automatic</i> stay does not attach, even assuming its application, the provision does not limit the Court’s inherent ability to issue a stay. “Even when the statutes do not call for an automatic stay on appeal, the trial and appellate courts both have the power to issue discretionary stays.” (<i>Daly v. San Bernardino County Bd. of Supervisors</i> (2021) 11 Cal.5th 1030, 1039.) Here, the reasoning provided by the United States Supreme Court in <i>Coinbase, Inc. v. Bielski</i> (2023) 599 U.S. 736 is persuasive: “If the district court could move forward with pre-trial and trial proceedings while the appeal on arbitrability was ongoing, then many of the asserted benefits of arbitration (efficiency, less expense, less intrusive discovery, and the like) would be irretrievably lost – even if the court of appeals later concluded that the case actually had belonged in arbitration all along.” (<i>Coinbase, Inc. v. Bielski</i> (2023) 599 U.S. 736, 743.)
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